

		The cost-splitting and related terms contained in paragraph 10 are collateral to the purpose of the contract. The Court hereby severs the following language in paragraph 10: “[A]ny fees to arbitrate - including but not limited to the administration fee and arbitrator’s hourly rate - shall be split by Employer and Employee” “Employee represents and warrants that she is not financially challenged, not in poverty as set forth in Code Civ. Proc., § 1284.2, and is financially capable to afford her own fees and expenses arising from arbitration as set forth in this paragraph, and if she becomes financially incapable to afford the fees and costs arising from arbitration as set forth in this paragraph during her course of employment, she will inform the Employer so that the parties would be able to renegotiate the terms of this Arbitration Agreement and/or this paragraph.” “Notwithstanding the foregoing, in the event that at the outset of arbitration proceeding, the arbitrator decides that one party must pay all the arbitration fees and/or that the fee split is not fair, should be disregarded, and/or is unconscionable, then each party has the option to immediately terminate arbitration and proceed with seeking remedies in the state court without any penalties pursuant to California Code of Civil Procedure Sections 1281.97 et. seq., including California Code of Civil Procedure Section 1281.98 and/or any applicable then current rules or regulations, as if the arbitration proceedings never existed.” The Court otherwise finds the parties’ arbitration agreement enforceable. The motion is therefore GRANTED, subject to severance of unconscionable provisions, and the proceedings STAYED pending arbitration. <i>Counsel for Defendant shall provide notice of this ruling.</i>
9.	Clinician Home Health Services Inc. v. Tamayo 24-1372698	The Motion to be Relieved as Counsel, filed on 5/20/26 by Attorney William J. Mall III of the Law Office of William J. Mall, III, as to the representation of Defendant MacGroup and Associates, LLC, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check box 5(a); fill in re IDC for Box 7; update trial date and time for Box 9]. The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. <i>Moving counsel is to give notice of this ruling.</i>
10.	McQuade v. City of Anaheim	Before the Court is a motion to strike filed by defendants City of Anaheim (the City) and Rebecca Cherene (Cherene)(collectively,